

Procedural History:

This case was initiated in June 2018 by the Plaintiff Law Office's complaint against Defendants Alai and Nabili alleging failure to pay attorney fees in the amount of approximately \$30,000.00. Alai and Nabili cross-complained alleging various breaches of duty by the Law Office and Plummer related to their representation of Defendants in several lawsuits.

Both sides have aggressively litigated the dispute, resulting in an extraordinary number of filings and hearings. As of 6/26/26, the Court's case management system reflects over 2,000 docket entries including more than 125 minute orders. The Court has held at least 50 hearings on motions, not including ex parte applications. The parties' dispute now includes two other lawsuits, Orange County Case Nos. 2020-01141868 and 2025-01469232.

The Court has repeatedly admonished the parties for engaging in harassment and delay tactics rather than litigating the merits of their case. Both sides have been repeatedly warned about filing documents which violate the Code of Civil Procedure and/or Rules of Court.

The Court partially granted Plaintiff/Cross-Defendants' motion to deem Alai a vexatious litigant as to Alai's claims against former Cross-Defendant Jocelyn Plummer only. (2/13/24 Minute Order.) The Court denied Alai's motion to deem Plaintiff a vexatious litigant because it found the Plaintiff Law Office is a corporate entity not subject to the vexatious litigant statute. (11/25/25 Minute Order.)

On 7/10/23, Movants filed a prior "Motion for Summary Adjudication" regarding the FACC, which was initially set for hearing on 3/26/24 then continued to 4/16/24. Although labeled a motion for summary adjudication, the motion sought adjudication in Movants' favor on "each of the 7 causes of action" in the FACC, as well as a single cause of action in the Complaint. Therefore, the prior motion was a motion for summary judgment as to the entire FACC, not merely summary adjudication.

In April 2024, the Court issued a tentative ruling to deny the prior motion, held a hearing, and took the prior motion under submission. However, the Court of Appeal stayed proceedings in the trial court on 4/24/24 and this Court issued a minute order on 4/29/24 stating the prior motion was no longer under submission and staying its ruling on the motions. The Court never issued a final order on the merits of the prior motion.

Trial is set for 9/18/26.